

SOLVED PRACTICE WORKBOOK

CIC and SIC - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CIC and SIC REFRESHED TEACHING NAVIGATION – BASIC/CORE FIRST	
01 IDENTITY: CONSTITUTIONAL RIGHT, STATUTORY MACHINERY The Central Information Commission (CIC) and State Information	02 THE RTI VOCABULARY THAT CONTROLS EVERY ANSWER The seven-rule limitation is that parliamentary law statutory authority
03 SECTION 4: TRANSPARENCY BEFORE A CITIZEN ASKS Spreading an unresolvable user is formal publication, not necessarily	04 THE ACCESS ROUTE: PIO, SPIO AND APIO When filed through an APIO, five days are added to the response
05 TRANSFER, TIME, FEE AND DEEMED REFUSAL Failure to decide within the time is deemed refusal	06 FOUR ROUTES THAT CANDIDATES MUST NOT FLATTEN Four routes that candidates must not flatten operates through
07 CIC COMPOSITION AND APPOINTMENT The Commission consists of the Chief Information Commissioner and	08 SIC COMPOSITION AND APPOINTMENT SIC composition and appointment operates through The same
09 ELIGIBILITY AND DISQUALIFICATIONS The decision contrast is between feature intended value Resultant risk	10 THE 2019 AMENDMENT: ACT VERSUS DELEGATED RULES The independence debate is not merely "three versus five" The
11 PAY AND SERVICE CONDITIONS UNDER THE 2019 RULES The decision contrast is between Post Monthly fixed pay under 2019	12 REMOVAL, DIRECT GROUNDS AND SUSPENSION Direct statutory grounds permit removal without that inquiry route
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17 SECTIONS 10 AND 11: SEVERABILITY AND THIRD-PARTY PROCEDURE Sections 10 and 11 severability and third-party procedure denotes the	18 SECTION 24 SECURITY ORGANISATIONS AND SECTION 22 OVERRIDE Security exclusion is broad but not absolute
19 CONSTITUTIONAL PRIVACY AFTER THE TEXTUAL CHANGE The decision contrast is between through proportionality and	20 CASE LAW: EXACT PROPOSITION AND CAUTION Case law exact proposition and caution operates through Use it as
21 INDEPENDENCE AND ACCOUNTABILITY: THE REAL INSTITUTIONAL TEST The decision contrast is between Energy head Safeguard Gap/risks and	22 INSTITUTIONAL COMPARISONS Technically, institutional comparisons is analyzed by relating statute
23 WHY RTI SUCCEEDS AND FAILS RTI succeeds where records exist, section 4 disclosure is usable, PIOs	24 ANSWER-WRITING FRAMEWORKS Technically, Answer-writing frameworks is analyzed by relating writing

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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CIC and SIC - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original hard MCQs - 36 questions

OM1. The most accurate description of the CIC is:

A. A tribunal created under Article 323B B. An executive grievance portal C. A constitutional court for transparency disputes D. A statutory quasi-judicial RTI appellate and complaint body

Answer: D.

Explanation: [FACT] The RTI Act creates the CIC. It has complaint, appellate, compliance, compensation and penalty powers, but it is not a constitutional court or general tribunal.

OM2. The constitutional foundation of the right to know is most directly linked to:

A. Article 300A B. Article 14 alone C. Article 20(3) D. Article 19(1)(a)

Answer: D.

Explanation: [FACT] *State of U.P. v. Raj Narain (1975)* and *S.P. Gupta v. Union of India (1981)* link the right to know/open government with freedom of speech and expression.

OM3. Which is included in the statutory “right to information”?

A. Ordering the grant of a service entitlement B. Taking certified samples of material C. Compelling a department to create a new expert report D. Requiring a minister to answer a hypothetical question

Answer: B.

Explanation: [FACT] Section 2(j) includes inspection, certified copies, certified samples and electronic access. [LIMIT] RTI does not create information or award the underlying entitlement.

OM4. A non-government organisation enters section 2(h) when it is:

A. registered under any law B. receiving one minor government grant C. substantially financed directly or indirectly by government funds D. performing any socially useful work

Answer: C.

Explanation: [FACT] Substantial finance is the statutory test; every registration or small grant is insufficient.

OM5. The central purpose of section 4(2) is to:

A. authorise the Commission to legislate disclosure rules B. replace the PIO system with social audit C. exempt all Cabinet material permanently D. maximise suo motu disclosure so citizens need minimum resort to requests

Answer: D.

Explanation: [FACT] Section 4(2) is the prevention layer of the RTI regime.

OM6. When an application is filed through an APIO, the Act:

A. converts it into a first appeal B. adds five days in computing the response period C. shortens the period by five days D. removes the fee automatically

Answer: B.

Explanation: [FACT] The proviso to section 5(2) adds five days.

OM7. Transfer under section 6(3) must occur:

A. only after CIC approval B. as soon as practicable and not later than five days C. within 30 days D. within 48 hours in all cases

Answer: B.

Explanation: [FACT] The applicant must also be informed immediately about the transfer.

OM8. If a public authority misses the statutory response time:

A. only a section 18 complaint is possible B. the applicant must pay a higher copying fee C. the failure is deemed refusal and later information is free of charge D. the application lapses

Answer: C.

Explanation: [FACT] Sections 7(2) and 7(6) create these consequences.

OM9. Information concerning life or liberty must ordinarily be provided within:

A. ten days B. 48 hours C. five days D. thirty days

Answer: B.

Explanation: [FACT] This is the section 7(1) proviso.

OM10. The first appeal ordinarily lies to:

A. the Lokpal B. the CIC/SIC directly C. the High Court D. an officer senior in rank to the PIO in the public authority

Answer: D.

Explanation: [FACT] The Commission hears the second appeal.

OM11. In a second appeal, the onus to justify denial lies on:

A. the third party in every case B. the Commission registry C. the applicant D. the PIO who denied the request

Answer: D.

Explanation: [FACT] Section 19(5) reverses the ordinary informational disadvantage.

OM12. Chief Information Commissioner v. State of Manipur (2011) is authority for the proposition that:

A. first appeals are optional in every case B. section 18 was repealed C. section 18 complaint is not an automatic substitute for the section 19 disclosure appeal D. complaints can never trigger penalty

Answer: C.

Explanation: [FACT] The statutory routes have distinct remedial fields.

OM13. The CIC consists of:

A. the Chief plus exactly ten members B. the Chief plus not more than ten Central Information Commissioners C. a Chief and unlimited commissioners D. eleven members apart from the Chief

Answer: B.

Explanation: [FACT] The Act sets a ceiling, not a required filled strength.

OM14. Which is part of the CIC selection committee?

A. Speaker of the Lok Sabha B. Union Cabinet Minister nominated by the Prime Minister C. Cabinet Secretary D. Chief Justice of India

Answer: B.

Explanation: [FACT] The committee is PM, Lok Sabha LoP/deemed leader, and nominated Union Cabinet Minister.

OM15. If no Lok Sabha Leader of Opposition is formally recognised:

A. the leader of the single largest opposition group is deemed LoP for this purpose B. the committee becomes two-member C. the President nominates any opposition MP D. the Chief Justice joins

Answer: A.

Explanation: [FACT] This is the statutory explanation to section 12(3).

OM16. A State Information Commissioner is appointed by:

A. the President on the Prime Minister's advice B. the Chief Minister directly C. the Governor on the statutory committee's recommendation D. the State Legislature

Answer: C.

Explanation: [FACT] The committee is CM, Assembly LoP/deemed leader and nominated State Cabinet Minister.

OM17. Which is an eligible field of knowledge/experience for an Information Commissioner?

A. Only judicial service B. Journalism and mass media C. Only information technology D. Only civil service

Answer: B.

Explanation: [FACT] The Act lists multiple fields and does not require a judicial monopoly.

OM18. Which disqualification is correctly stated?

A. A former civil servant can never be appointed. B. Legal experience is prohibited. C. Every appointee must have held constitutional office. D. A serving commissioner cannot be connected with a political party.

Answer: D.

Explanation: [FACT] Party connection, legislative membership, office of profit, business and profession are barred.

OM19. Under the 2019 Rules, the ordinary term is:

A. six years B. five years for Central and three for State C. three years from entry into office D. pleasure tenure

Answer: C.

Explanation: [FACT] The age-65 statutory ceiling continues.

OM20. Which reappointment statement is correct?

A. Every IC may receive unlimited three-year renewals. B. A Chief may be reappointed once. C. An IC is not reappointable as IC but may be appointed Chief, subject to an aggregate five-year ceiling. D. An IC can automatically become Chief without selection.

Answer: C.

Explanation: [FACT] Appointment as Chief still follows the statutory committee route.

OM21. The current fixed monthly pay of the Central Chief Information Commissioner under the 2019 Rules is:

A. Rs 2,50,000 B. Rs 2,25,000 C. Rs 2,00,000 D. linked automatically to the serving Chief Election Commissioner

Answer: A.

Explanation: [FACT] The old statutory parity is historical, not the current legal source.

OM22. The current fixed monthly pay of a State Chief Information Commissioner is:

A. whatever the State Cabinet chooses case by case B. Rs 2,50,000 C. Rs 2,25,000 D. automatically the Chief Secretary's pay

Answer: C.

Explanation: [FACT] The Central 2019 Rules prescribe Rs 2,25,000 for both the State Chief and State IC.

OM23. The deepest autonomy criticism of the 2019 amendment is that it:

A. moved core tenure/pay conditions from the Act to Central executive rules B. removed all appellate powers C. made Commission orders advisory D. abolished the opposition member

Answer: A.

Explanation: [ANALYSIS] The change concerns the source and controller of structural safeguards.

OM24. For proved misbehaviour or incapacity, a State Chief Information Commissioner is removed:

A. by the Chief Minister without inquiry B. by the President after a High Court inquiry C. by the State Legislature D. by the Governor after a Supreme Court inquiry on the Governor's reference

Answer: D.

Explanation: [FACT] Do not import the SHRC's President-removal rule into the SIC.

OM25. During a Supreme Court inquiry into a Central commissioner:

A. the President may suspend and prohibit attendance at office B. suspension is constitutionally impossible C. the Lok Sabha Speaker suspends D. the Prime Minister alone suspends

Answer: A.

Explanation: [FACT] Section 14(2) supplies the power after reference.

OM26. Which is a direct statutory removal ground?

A. Media criticism B. Adjudged insolvency C. Low disposal rate without more D. A decision adverse to government

Answer: B.

Explanation: [FACT] Other listed grounds include relevant conviction, paid outside employment, infirmity and prejudicial interest.

OM27. Civil-court powers under section 18 mean that the Commission may:

A. summon witnesses and require evidence on oath B. convict a PIO for a criminal offence C. execute compensation as a civil decree D. strike down section 8

Answer: A.

Explanation: [FACT] Evidence-gathering power does not convert institutional identity.

OM28. Which is within section 19(8)?

A. Granting the underlying pension B. Amending the RTI Act C. Sentencing a public servant D. Requiring a public authority to improve record-management practices

Answer: D.

Explanation: [FACT] Section 19(8) contains systemic compliance directions.

OM29. A section 20(1) monetary penalty is imposed on:

A. the responsible CPIO/SPIO personally B. Parliament C. the applicant D. the public authority as a corporate fine

Answer: A.

Explanation: [FACT] Compensation and penalty must be distinguished.

OM30. The maximum section 20(1) penalty is:

A. Rs 50,000 B. unlimited C. Rs 25,000 D. Rs 10,000

Answer: C.

Explanation: [FACT] The daily rate is Rs 250.

OM31. Compensation under section 19(8)(b) primarily seeks to:

A. redress loss or detriment suffered by the complainant B. replace disciplinary action C. fund the Commission D. punish the applicant

Answer: A.

Explanation: [FACT] It is distinct from the PIO's personal penalty.

OM32. Section 11 is best described as:

A. a veto vested in every third party B. a privacy chapter overriding section 8(2) C. a notice, representation and decision procedure, not an independent exemption D. an absolute exemption for all third-party records

Answer: C.

Explanation: [FACT] The authority must still apply the relevant exemption/public-interest rules.

OM33. Section 10 requires:

A. third-party consent in every request B. rejection of the whole record whenever one line is exempt C. disclosure of reasonably severable non-exempt portions D. automatic transfer to a court

Answer: C.

Explanation: [FACT] Redaction/severability is a less restrictive disclosure tool.

OM34. Under section 24, human-rights information concerning a listed Central security organisation:

A. follows the CIC-approval route and a 45-day clock B. is always absolutely barred C. must be supplied in 48 hours D. is decided only by Parliament

Answer: A.

Explanation: [FACT] Corruption and human-rights allegations are preserved provisos; the latter has approval/time conditions.

OM35. The current RTI section 8(1)(j) text is:

A. the Parliament-parity proviso only B. the old public-activity/unwarranted-invasion formulation C. “information which relates to personal information” D. a complete repeal of personal-information protection

Answer: C.

Explanation: [CURRENT] DoPT’s consolidated Act records the substitution effective 13 November 2025.

OM36. Which current-law statement is most accurate?

A. DPDP section 44(3) commences in May 2027. B. Section 8(2) was deleted with clause (j). C. Section 44(3) is in force, section 8(2) remains, and no unverified litigation outcome should be asserted. D. The Supreme Court has finally upheld the substitution.

Answer: C.

Explanation: [CURRENT] This is the legally controlled position as of the package date.

Remedial MCQs - 12 questions

RM1. A student writes, “CIC is a constitutional tribunal because its orders are binding.” The best correction is:

A. Source and force are separate: CIC is statutory and quasi-judicial, with binding appellate orders subject to judicial review. B. CIC is a tribunal under Article 323A. C. CIC is an executive committee. D. Every binding body is a constitutional court.

Answer: A.

Explanation: [FACT] Classify by creating source, then state powers.

RM2. Which request most clearly seeks information under the Act?

A. “Provide the recorded file noting and order on my representation.” B. “Create a new comparative policy study.” C. “Sanction my claim immediately.” D. “Why did you personally dislike my representation?”

Answer: A.

Explanation: [FACT] Existing recorded material is the statutory object.

RM3. An applicant wants actual disclosure after a PIO denial. The safer route is:

A. section 18 complaint only, with no appeal B. first appeal followed by section 19 second appeal C. Lokpal complaint D. direct civil suit

Answer: B.

Explanation: [FACT] *Chief Information Commissioner v. State of Manipur (2011)* controls the complaint/appeal distinction.

RM4. Which sentence must be deleted?

A. The Commission can direct disclosure in second appeal. B. The Commission can compensate loss under section 19(8). C. The Commission can summon witnesses during a section 18 inquiry. D. The Commission can finally decide whether the applicant is entitled to a pension.

Answer: D.

Explanation: [LIMIT] It decides information access, not the underlying service right.

RM5. The strongest correction to “all Commissioners are barred from ever becoming Chief” is:

A. The President may waive all tenure rules. B. An IC cannot be reappointed as IC but may be appointed Chief through the statutory route, subject to the aggregate ceiling. C. Every IC automatically becomes Chief. D. Only State ICs may become Chief.

Answer: B.

Explanation: [FACT] This is the high-yield reappointment nuance.

RM6. Which salary statement is current?

A. Every State separately fixes salary. B. No salary is prescribed. C. State Chief salary equals the CEC by the Act. D. The 2019 Rules fix Rs 2,25,000 for both State Chief and State IC.

Answer: D.

Explanation: [FACT] Do not use state parity.

RM7. A Commission wants to impose penalty for delay. It must especially ensure:

A. applicant consent B. statutory grounds, hearing and assessment of reasonable diligence C. a political approval D. prior criminal conviction

Answer: B.

Explanation: [FACT] Penalty is not an automatic arithmetic consequence of every delay.

RM8. Which pairing is correct?

A. compensation-public authority; penalty-PIO personally B. both-public authority C. both-PIO personally D. compensation-PIO personally; penalty-public authority

Answer: A.

Explanation: [FACT] Purpose and target differ.

RM9. A record contains exempt personal details and non-exempt expenditure totals. The first corrective tool is:

A. destruction of the record B. blanket rejection C. section 24 security exclusion D. section 10 severability/redaction

Answer: D.

Explanation: [FACT] Disclosure should be narrowed to the non-exempt part where reasonably severable.

RM10. Which sentence correctly treats section 11?

A. It gives the third party an absolute veto. B. It creates a new exemption. C. It applies only to intelligence agencies. D. It provides third-party consultation; the authority still decides under the Act.

Answer: D.

Explanation: [FACT] Procedure and exemption must not be conflated.

RM11. Which statement preserves the DPDP timing distinction?

A. Section 44(3) commenced in the first tranche, while most sections 3-17 commence in May 2027. B. Section 44(3) is still uncommenced. C. Section 44(2) amended RTI section 8(1)(j). D. Every DPDP right and duty became operational in November 2025.

Answer: A.

Explanation: [CURRENT] Section 44(2) concerns the IT Act and is in the later tranche.

RM12. The safest conclusion on privacy and transparency is:

A. Section 8(2) makes the substitution meaningless. B. The clause-level exemption broadened, while section 8(2), severability and constitutional proportionality remain important controls. C. The old clause remains current. D. Privacy always defeats disclosure.

Answer: B.

Explanation: [ANALYSIS] This recognises both legal change and surviving safeguards.

Visual 77 - MCQ coverage and rotation audit

Domain	Questions	Correct-option sequence
identity, definitions and section 4	Q1-Q5	D-C-A-B-D
process and routes	Q6-Q12	C-A-B-D-C-A-B
design and service conditions	Q13-Q24	D-C-A-B repeated three times
powers, penalty and exemptions	Q25-Q34	D-C-A-B-D-C-A-B-D-C
current privacy law	Q35-Q36	A-B
remedials	R1-R12	D-C-A-B repeated three times
total	48	strict continuous D-C-A-B repeated 12 times

PYQS AND ANSWER PRACTICE

Workbook boundary: Everything from this heading through the eight original solved Mains questions is included in the separate workbook PDF. Final consolidated register notes are intentionally excluded from that workbook.

Verified routed previous-year question

PYQ 1 - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2

Official-paper wording (verbatim-verified from the locally held UPSC paper):

“Recent amendments to the Right to Information Act will have profound impact on the autonomy and independence of the Information Commission”. Discuss. (*Answer in 150 words*) - 10 marks

Evidence status: [FACT] Exact English wording, year, paper, marks and word limit were checked against books/more_previous_papers/Gen_St_P2.pdf. The local routing ledger cross-routes it to CIC/SIC, transparency/accountability and consolidated statutory-body owners. UPSC supplies no official model answer or marking key; none is inferred.

Demand decode

- **“Recent amendments” in a 2020 paper:** principally the RTI (Amendment) Act, 2019 and the 2019 service-condition Rules.
- **“Profound impact”:** evaluate the mechanism, not merely list altered provisions.
- **“Autonomy and independence”:** test appointment, tenure, pay, removal, staffing, decisional power and relation to the government being reviewed.
- **“Discuss”:** give the autonomy critique, the surviving safeguards/counter-position and a graded verdict.

Model solution

The Information Commissions are statutory appellate watchdogs whose credibility depends on independence from the governments whose disclosure decisions they review.

[FACT] The RTI (Amendment) Act, 2019 removed the Act's fixed five-year tenure and Election-Commission-linked salary provisions and authorised the Central Government to prescribe tenure, pay and service conditions for both Central and State Commissioners. The 2019 Rules fixed a three-year term and specified salaries.

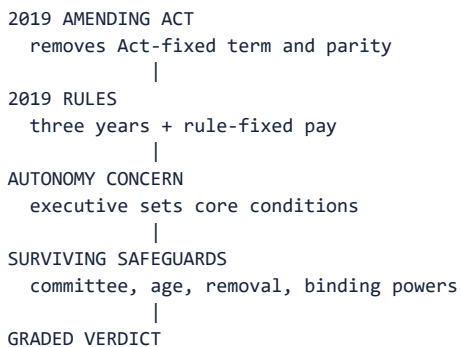
[ANALYSIS] This change can affect autonomy in three ways. First, an executive-controlled rule now determines core conditions of an adjudicator hearing cases against that executive. Second, removal of statutory parity and shortening of ordinary tenure can weaken institutional status and continuity. Third, central prescription for State Commissioners raises a federal-independence concern.

[LIMIT] The amendment did not abolish all safeguards: committee-based appointment with opposition participation, age ceiling, non-reappointment, protected removal after Supreme Court inquiry for proved misbehaviour/incapacity, and binding appellate/penal powers remain.

Therefore, the amendment does not make the Commissions legally subordinate in decision-making, but it shifts a structural guarantee from Parliament's Act to executive rules. Fixed statutory safeguards, timely transparent appointments and independent staffing would better reconcile administrative flexibility with autonomy.

Why this earns marks: It answers the 2020 time context, identifies the exact legal mechanism, links each change to autonomy, supplies a counter-position and reaches a qualified verdict within a 10-marker structure.

Visual 76 - PYQ evidence chain



Current-law addendum to the 2020 PYQ

[CURRENT] A 2026 answer may add one final sentence-without rewriting the historical demand-that DPDP Act section 44(3), effective 13 November 2025, has separately changed the substantive personal-information exemption. Institutional autonomy and the breadth of disclosable information are distinct analytical questions.

Original solved Mains practice - 8 questions

M1. 10 marks, 150 words

Question: Distinguish a complaint under section 18 of the RTI Act from a second appeal under section 19. Why does the distinction matter?

Directive decode: “Distinguish” requires common criteria, not two isolated descriptions; the second limb requires practical significance.

Model solution

A section 18 complaint and a section 19 second appeal both reach an Information Commission, but they serve distinct remedial purposes.

[FACT] Section 18 permits a complaint where a person cannot submit a request, is refused access, receives no timely reply, faces unreasonable fee, or receives incomplete, misleading or false information. On reasonable grounds, the Commission may inquire with civil-court powers and inspect any covered record.

[FACT] A second appeal under section 19(3) follows the first-appeal route and allows the Commission to review denial/non-decision. The PIO bears the burden of justifying denial; section 19(8) permits disclosure and systemic compliance directions.

[FACT] In *Chief Information Commissioner v. State of Manipur (2011)*, the Supreme Court held that the complaint route is not an automatic substitute for the statutory appellate disclosure remedy.

[ANALYSIS] The distinction matters because remedy must match jurisdiction. A citizen seeking the document should use appeal, while obstruction of the access system may justify complaint and penalty scrutiny.

[LIMIT] Section 20 consequences may arise in either complaint or appeal when statutory conditions are met.

Why this earns marks: It compares trigger, power, remedy and authority, uses the controlling case and preserves the section 20 qualification.

Visual 78 - Complaint-appeal 10-marker grid

Criterion	Complaint	Second appeal
section	18	19(3)
focus	access-system failure	review of denial/non-decision
disclosure	not substitute route	direct appellate remedy
authority	civil-court inquiry	binding appeal + section 19(8)

M2. 10 marks, 150 words

Question: Explain how compensation, monetary penalty and disciplinary recommendation operate as distinct accountability tools under the RTI Act.

Directive decode: State target, trigger, purpose and procedure for each.

Model solution

The RTI Act separates restorative, deterrent and service-disciplinary consequences.

[FACT] Under section 19(8)(b), the Commission may require the **public authority** to compensate a complainant for loss or detriment. This is restorative: it addresses the applicant's injury from wrongful RTI administration.

[FACT] Section 20(1) imposes a **personal penalty on the CPIO/SPIO** for listed defaults-refusing an application, delay, malafide denial, knowingly false/incomplete/misleading information, record destruction or obstruction-without reasonable cause. The rate is Rs 250 per day, capped at Rs 25,000. The PIO receives a hearing and bears the reasonable-diligence burden.

[FACT] Section 20(2) requires a **disciplinary recommendation** for persistent default under applicable service rules. The competent service authority, not the Commission acting as employer, carries the process forward.

[ANALYSIS] Together, the tools repair individual harm, deter access obstruction and address repeated service misconduct.

[LIMIT] They cannot be merged into a casual fine on the department or punitive damages without statutory findings.

Why this earns marks: It names sections, target, trigger and purpose, and ends with the due-process boundary.

Visual 79 - Accountability triad

LOSS TO APPLICANT -> compensation by public authority
LISTED PIO DEFAULT -> personal monetary penalty
PERSISTENT DEFAULT -> disciplinary recommendation under service rules

M3. 10 marks, 150 words

Question: Compare the composition, appointment and removal of the CIC and SIC.

Directive decode: Use identical heads and include the LoP deeming rule and suspension/removal trap.

Model solution

Both bodies are statutory Information Commissions under the RTI Act, but their design mirrors Union and State executive structures.

[FACT] **Composition:** CIC comprises the Chief plus not more than ten Central ICs; SIC comprises the State Chief plus not more than ten State ICs.

[FACT] **Appointment:** The President appoints CIC members on a committee of the Prime Minister, Lok Sabha Leader of Opposition and a Union Cabinet Minister nominated by the PM. The Governor appoints SIC members on a committee of the Chief Minister, Assembly Leader of Opposition and a State Cabinet Minister nominated by the CM. Where no LoP is recognised, the leader of the single largest opposition group is deemed LoP.

[FACT] **Removal:** The President removes Central commissioners; the Governor removes State commissioners. Proved misbehaviour/incapacity requires a Supreme Court inquiry on the relevant authority's reference. That authority may suspend during the inquiry. Listed direct grounds permit removal by order.

[LIMIT] Do not import the NHRC/SHRC rule: an SHRC member is removed by the President, whereas an SIC member is removed by the Governor.

Why this earns marks: The answer uses common heads, exact authorities and the highest-yield inter-commission trap.

Visual 80 - CIC/SIC comparison spine

Head	CIC	SIC
chief + others	Chief + <=10	State Chief + <=10
appoint	President	Governor
committee chair	PM	CM
remove	President	Governor
SC inquiry	proved misconduct/incapacity	same

M4. 15 marks, 250 words

Question: “Information Commissions possess substantial legal teeth, yet the RTI regime can remain institutionally weak.” Analyse.

Directive decode: Establish powers, then explain why formal capacity may not translate into outcomes.

Model solution

Information Commissions are stronger than merely recommendatory accountability bodies, but legal power is only one link in the transparency chain.

Legal teeth: [FACT] Under section 18, they can inquire with civil-court powers and inspect any RTI-covered public record. In appeal, section 19(7) makes decisions binding, while section 19(8) permits disclosure, appointment of PIOs, proactive publication, record-management reform, training, compensation and penalties. Section 20 imposes a personal Rs 250-per-day penalty up to Rs 25,000 and supports disciplinary recommendation. [ANALYSIS] These powers combine adjudication, systemic correction and deterrence.

Why weakness persists: [FACT] *Anjali Bhardwaj v. Union of India (2019)* addressed prolonged vacancies and demanded timely transparent appointments. [ANALYSIS] An unfilled Commission cannot convert a statutory 30-day request into timely appellate relief. Government-provided staff, offices and budgets may limit administrative autonomy. Weak record management produces genuine/non-genuine “non-availability,” while rubber-stamp first appeals shift avoidable cases upward. Sparing or inconsistent penalty use reduces deterrence. Non-compliance can turn a binding order into a paper victory.

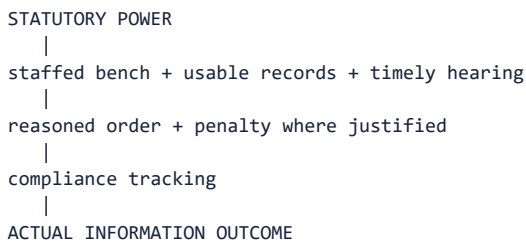
Substantive narrowing: [CURRENT] The commenced substitution of section 8(1)(j) broadens the clause-level personal-information exemption, though section 8(2) remains. [ANALYSIS] The Commission's power matters only within the information Parliament leaves disclosable.

Qualification: [LIMIT] Backlog or non-compliance should not be described through stale unverified totals; outcomes vary across Commissions and time.

Conclusion: RTI is not toothless in law; it is capacity-constrained in practice. Advance appointments, independent secretariats, section 4 audits, compliance dashboards and reasoned penalty practice would connect formal power to timely transparency.

Why this earns marks: It balances exact sections with causal institutional analysis, current-law control and targeted reforms.

Visual 81 - Teeth-to-outcome chain



M5. 15 marks, 250 words

Question: Examine the transparency-privacy balance under the RTI Act after the commencement of DPDP Act section 44(3).

Directive decode: State current law, compare the historical text, identify surviving controls and avoid predicting litigation.

Model solution

The DPDP amendment changes the statutory starting point for personal information but does not eliminate every transparency safeguard.

Current law: [CURRENT] MeitY G.S.R. 843(E) commenced DPDP section 44(3) on 13 November 2025. DoPT's consolidated RTI Act now states in section 8(1)(j): "information which relates to personal information." The old tests-no relation to public activity/interest, unwarranted invasion of privacy, clause-specific larger-public-interest exception and Parliament/State-Legislature proviso-are historical, not current text.

Effect: [ANALYSIS] The new clause is broader and easier to invoke at the threshold because it no longer requires the PIO to establish the old clause-level conditions. This may protect privacy consistently but can shield information about public decision-making where personal and public roles overlap.

Surviving controls: [FACT] Section 8(2) still allows disclosure where public interest outweighs harm to protected interests. Section 10 requires severability, permitting redaction rather than blanket withholding. Reasons, first appeal and Commission review remain. [FACT] *Subhash Chandra Agarwal (2019)* supplies a constitutional proportionality method for balancing transparency, privacy and institutional independence, though it interpreted the prior clause.

Current qualification: [LIMIT] Most substantive DPDP duties/rights are in a later tranche, so partial commencement must not be described as full operationality. No official Supreme Court order proving a stay, reference or final result was located for this package; no procedural status is asserted.

Conclusion: The clause-level balance has shifted toward privacy, but section 8(2), severability, reasons and constitutional proportionality remain central transparency controls.

Why this earns marks: It gets the commencement and text right, distinguishes clause-level and general overrides, and avoids unverified litigation claims.

Visual 82 - Privacy answer balance

Privacy-side evidence	Transparency-side control
new broad clause (j)	section 8(2) override
legitimate personal-data harm	section 10 redaction
DPDP statutory policy	reasons and appeals
Article 21	Article 19(1)(a) + proportionality

M6. 15 marks, 250 words

Question: Proactive disclosure under section 4 is more important to RTI's success than the volume of individual applications. Discuss.

Directive decode: Explain mechanism, benefits, limitations and a balanced verdict.

Model solution

Section 4 makes transparency an administrative default rather than a citizen-by-citizen struggle.

Statutory design: [FACT] Public authorities must catalogue/index records, computerise appropriate material, publish organisational powers, procedures, norms, rules, record categories, consultation arrangements, budgets, subsidies, concessions, remuneration and PIO particulars. Sections 4(1)(c)-(d) require relevant policy facts and reasons for administrative/quasi-judicial decisions. Section 4(2) seeks maximum suo motu disclosure so citizens need minimum resort to applications.

Why it matters: [ANALYSIS] First, publication lowers information asymmetry for every citizen simultaneously. Second, disclosure of budgets, beneficiaries and decision rules enables social audit, media scrutiny and legislative oversight. Third, it reduces repetitive applications and Commission backlog. Fourth, reason-giving improves administrative discipline before litigation arises.

Named evidence: [FACT] The Act's preamble links informed citizenry and transparency with containing corruption and accountability. DoPT's proactive-disclosure guidance translates section 4 into implementation expectations.

Limits: [LIMIT] A stale, scanned or unsearchable upload may satisfy form but fail use. Privacy, security and legitimate confidentiality still require calibrated redaction. Poor record creation cannot be cured by a website alone, and publication does not itself provide service relief or sanction wrongdoing.

Reform: Annual third-party section 4 audits, machine-readable datasets, local-language access, disclosure logs and linkage to record-retention rules should be institutionalised.

Conclusion: Applications remain the enforceable safety valve, but section 4 determines whether RTI operates as routine open government or as perpetual adversarial litigation.

Why this earns marks: It uses exact section 4 duties, explains causal benefits, names implementation limits and avoids equating transparency with complete accountability.

Visual 83 - Section 4 multiplier

ONE PROACTIVE DISCLOSURE
|
MANY CITIZENS INFORMED
|
FEWER REQUESTS + BETTER AUDIT + EARLIER CORRECTION
|
LOWER APPEAL BURDEN

M7. 20 marks, 250 words

Question: Critically evaluate the independence of the Central and State Information Commissions after the RTI (Amendment) Act, 2019. Suggest institutional safeguards.

Directive decode: Apply explicit independence criteria, present counter-evidence and propose legally appropriate reforms.

Model solution

Information Commissions require independence because they adjudicate disclosure disputes against the same governments that appoint, fund and staff them.

Surviving statutory safeguards: [FACT] CIC appointments are made by the President on a PM-LoP-Union Minister committee; SIC appointments by the Governor on a CM-Assembly LoP-State Minister committee. The Act prescribes multidisciplinary eligibility, conflict disqualifications, age 65, non-reappointment and protected removal. Proved misbehaviour/incapacity requires Supreme Court inquiry. Section 19 decisions are binding; sections 19(8) and 20 provide compliance, compensation and penalty powers.

Post-2019 concern: [FACT] The amendment removed Act-fixed five-year tenure and Election-Commission-linked pay and delegated tenure, salary and service conditions to Central rules. The 2019 Rules prescribe three-year terms and fixed pay, with Central control over residuary conditions and relaxation. [ANALYSIS] This creates a structural conflict: the executive whose secrecy is reviewed determines core conditions of both Central and State adjudicators. Shorter rule-made tenure may reduce continuity, while central prescription for SICs adds a federal concern.

Counter-position: [LIMIT] Rule-made conditions do not automatically prove biased decisions. High fixed salaries, the non-disadvantage proviso, committee appointment, SC-inquiry removal and binding powers remain. Statutory bodies need not replicate a constitutional body's status in every respect.

Operational independence: [FACT] *Anjali Bhardwaj v. Union of India (2019)* required timely transparent appointments. [ANALYSIS] Vacancy delay, executive-provided staff/budget and weak compliance can impair independence more directly than formal text.

Safeguards: Parliament should restore core tenure/service guarantees to the Act; selection should begin before vacancies with published criteria/shortlists; independent secretariats and predictable budgets should be created; age-wise pendency, recusal, penalty and compliance data should be published; first appeals and section 4 audits should reduce appellate load.

Conclusion: The 2019 change did not extinguish legal autonomy, but moved key structural guarantees into executive hands. Independence now depends too heavily on rules and practice; statutory insulation and operational capacity should be strengthened together.

Why this earns marks: It evaluates appointment, tenure, pay, removal, powers, staffing and appointments with named law/case evidence and a balanced verdict.

Visual 84 - Independence criteria matrix

Criterion	Present support	Present vulnerability
appointment	opposition participation	executive majority
tenure/pay	fixed 2019 Rules	Central rule control
removal	Supreme Court inquiry	no cure for non-appointment
decisional power	binding + penal	compliance gap
administration	statutory staff duty	executive dependence
accountability	reports/reasons/review	variable publication quality

M8. 20 marks, 250 words

Question: The RTI Act is an ecosystem of records, disclosure, adjudication and accountability rather than merely a request-and-reply law. Analyse the statement with reference to CIC and SIC.

Directive decode: Cover the full architecture, show causal links and identify system boundaries.

Model solution

The RTI Act converts the constitutional right to know into a chain extending from record creation to appellate enforcement.

Records and disclosure: [FACT] Section 2 defines information, record, public authority and modes of access. Section 4 requires cataloguing, computerisation, institutional/budget/beneficiary disclosure and reasons, while section 4(2) seeks minimum resort to applications. [ANALYSIS] Without reliable records, the legal right has no object.

Request administration: [FACT] Sections 5-7 establish PIO/APIO assistance, reason-free applications, five-day transfer, 30-day decisions, 48-hour life/liberty access, deemed refusal and free information after delay. [ANALYSIS] Time limits turn openness from discretion into duty.

Adjudication: [FACT] First appeal stays within the authority; second appeal reaches CIC/SIC, where the PIO bears the denial burden. Section 18 separately addresses access-system complaints. *Chief Information Commissioner v. State of Manipur (2011)* prevents remedial confusion. Commission decisions bind; section 19(8) supports disclosure, publication, record reform, training and compensation.

Accountability: [FACT] Section 20 creates personal penalty and disciplinary recommendation. Section 25 monitors denials, appeals, discipline and reform. *Anjali Bhardwaj v. Union of India (2019)* shows that vacancies can disable this architecture.

Calibrated secrecy: [FACT] Sections 8-11 and 24 protect legitimate interests, while section 8(2), severability and corruption/human-rights provisos preserve accountability. [CURRENT] The 2025 personal-information substitution shifts the balance but leaves section 8(2) intact.

Boundaries: [LIMIT] CIC/SIC do not grant the underlying pension, investigate corruption generally, convict offenders or become constitutional courts. Judicial review remains.

Conclusion: RTI works when section 4 prevention, trained PIOs, independent first appeals, staffed Commissions, reasoned exemptions, penalty and compliance operate as one system. Reform must therefore target records and institutions, not merely shorten the application form.

Why this earns marks: It traces the full statutory chain, integrates cases/current law and preserves jurisdictional limits.

Visual 85 - Ecosystem synthesis

